

		As Plaintiff concedes there is no fraud, the court SUSTAINS the demurrer to the fifth cause of action without leave to amend. (See, e.g., <i>Setliff v. E. I. Du Pont de Nemours & Co.</i> (1995) 32 Cal.App.4th 1525, 1536 [“Plaintiff’s papers in opposition are reliable indications of his position on the facts and we may use these statements as admissions against him”].) Defendant to give notice.
3	Skarlat vs. Hoag Memorial Presbyterian	<u>Demurrer</u> <u>Motion to Strike</u> OFF-CALENDAR. Defendant HOAG MEMORIAL HOSPITAL PRESBYTERIAN filed a demurrer and a motion to strike on 9/26/24, both directed at the <i>original</i> Complaint. Plaintiff MICHAEL SKARLAT filed a First Amended Complaint (FAC) on 9/17/24. The filing of the FAC renders the demurrer and motion to strike moot since the original Complaint has been superseded and the FAC is now the operative pleading. (See, e.g., <i>State Comp. Ins. Fund v. Superior Court</i> (2010) 184 Cal.App.4th 1124, 1131 [“Because there is but one complaint in a civil action [citation], the filing of an amended complaint moots a motion directed to a prior complaint.”]; <i>JKC3H8 v. Colton</i> (2013) 221 Cal.App.4th 468, 477 [“the filing of an amended complaint renders moot a demurrer to the original complaint”].) Moving Defendant to give notice.
7	Blancas vs. Kimco Staffing Services, Inc.	<u>Motion to Compel Arbitration</u> The court GRANTS the Motion to Compel Arbitration filed by Petitioners RAFAEL BLANCAS, LIZET DE LA ROSA, CESAR CASIANO, ALAN CABANAS, CHRISTOPHER DRAKE, SCOTT MORENO, CRISTAL ESTRADA, ROBERT MEINHARDT, DEBBIE HERNANDEZ, and JOSE CAMACHO, as against Respondent KIMCO STAFFING SERVICES INC.